

rule on a motion that has not been properly noticed for hearing on the date in question.” (*Diaz v. Prof. Community Management, Inc.* (2017) 16 Cal.App.5th 1190, 1204-05.)

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Estate of Connie Ann Alric

25PR000148

FIRST AND FINAL ACCOUNT AND REPORT OF ADMINISTRATOR AND PETITION FOR ITS SETTLEMENT, FOR ALLOWANCE OF COMPENSATION TO ATTORNEYS FOR ORDINARY SERVICES, FOR A RESERVE, AND FOR FINAL DISTRIBUTION

TENTATIVE RULING: The petition is GRANTED, including fees as prayed.

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Estate of Adele Ann Casten

25PR000290

[1] PETITION HEARING FOR INSTRUCTIONS REGARDING THE VALIDITY OF ADELE CASTEN’S APRIL 19, 2019 AND MAY 3, 2019 WILLS

TENTATIVE RULING: The Court finds from the facts presented in the Petition that the presumption of fraud or undue influence arising under Probate Code section 21380 applies to the Last Will and Testament of Adele Casten dated May 3, 2019, and lodged with the Court on May 19, 2026 (May 3, 2019, Will). However, the Court finds, in the matters set forth in the Statement of Facts filed August 3, 2026, by Claire Fahlstrom, “clear and convincing evidence, that the donative transfer was not the product of fraud or undue influence.” (Prob. Code, § 21380, subd. (b).)

Based on the foregoing, the Court finds good cause for ruling that the May 3, 2019, Will is a valid testamentary instrument. Moreover, the Court is prepared, on the same grounds, to find MOOT the request to determine the validity of the Last Will and Testament of Adele Casten dated April 19, 2019. However, all interested parties have the right to appear and object to the Petition orally or in writing at the hearing. (See Prob. Code § 1043.) Also, if any interested party appears to “request time for filing a response to the petition, for discovery proceedings, or for other preparation for the hearing,” the Court is required to grant a continuance (Prob. Code, § 852.)

[2] AMENDED PETITION FOR PROBATE OF WILL AND FOR LETTERS OF ADMINISTRATION WITH WILL ANNEXED AND AUTHORIZATION TO ADMINISTER UNDER THE INDEPENDENT ADMINISTRATION OF ESTATES ACT

APPEARANCE REQUIRED.

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PETITION FOR APPOINTMENT OF PROBATE CONSERVATOR OF THE PERSON

APPEARANCE REQUIRED

CIVIL LAW & MOTION CALENDAR – Hon. Cynthia P. Smith, Dept. A (Historic Courthouse) at 8:30 a.m.

Melissa Castellucci v. Peju Family Operating Partnership, LP

25CV000098

PLAINTIFF’S MOTION FOR PRELIMINARY APPROVAL OF CLASS ACTION AND PAGE SETTLEMENT

TENTATIVE RULING: In reviewing the motion for preliminary approval of class action settlement, the Court orders further briefing on the following items:

- 1) A reasonable estimate of the nature and amount of recovery that each class member could have obtained if plaintiff prevailed;
- 2) Amount, or an estimate, of what each class member will receive from the settlement amount;
- 3) Explanation as to why the class representative enhancement is reasonable in light thereof;
- 4) Plaintiff shall submit a supplemental declaration estimating the number of hours she spent on the matter as class representative;
- 5) Plaintiff shall provide California caselaw authorizing class counsel fees in the amount of 35% of the settlement.

The additional briefing shall be filed and served by August 25, 2026. The matter is CONTINUED to September 2, 2026, at 8:30 a.m. in Dept. A.

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Laurie Capitelli et al v. Melinda Stewart et al

26CV000878

DEMURRER TO PLAINTIFFS’ VERIFIED COMPLAINT

TENTATIVE RULING: The matter is CONTINUED to September 3, 2026 at 8:30 a.m. in Dept. A.
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